

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: October 28, 2013

TYPE OF DOCUMENT: (☒ ORDINANCE) (☐ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (CHANGE ORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSORs: (ORDINANCE OR RESOLUTION) Sean Allen

EXACT WORDING FOR AGENDA: An ordinance amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as Election and Ideological Sign Amendments from the 2013 Annual Review.

(1% Sales Tax Funding/Years)	N/A
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(Other Funding _____) (Grant _____)

CONTACT PERSON: Brandon Cammarata PHONE: 638-4303 DEPT: Planning/Development

OTHER CITY DEPARTMENT AFFECTED: _____

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The City of Cheyenne Planning Commission recommended approval of the above described text amendment by a vote of 4 to 1, with Mr. Rose voting no, at its meeting on October 21, 2013. See the attached Staff Report for more information.

Submitted by: Brandon Cammarata Title: Planning & Dev Director Date: October 23, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Development Office City Clerk's Office

The Unified Development Code contains an Annual Review Requirement (1.1.7). This requirement is to fine tune the code over time. The 2013 Annual Review process resulted in a work plan of improvements and actions related to the UDC. Public Comment was taken on the work plan at a public hearing on February 19, 2013. The work plan was updated based on public input, recommendations from Planning Commission and presented to the City Council at a work session on April 23, 2013. This proposal below, relating to elections signs was generated by the annual review process.

The primary concern at the annual review meeting was that there were too many limitations on election signs. There was also concern relating to the ability of a business or individual to communicate messages via signage that may not be related to business activities.

Election Signs. This proposal establishes election signs as their own sign category as opposed to including them as “temporary” signs generally. As a separate category of signs, the proposal has no limit to the quantity of election signs on a property and no limit for the time frame of signs on a property. This proposal does limit the size of election signs to 6 square feet per sign in residential zones and 32 square feet per sign in non residential zones. These signs are limited to private property.

The existing requirements being amended limit election signs as temporary signs to a maximum of two signs per Lot and a time limitation of starting 10 or 45 days prior to the earliest candidate registrations time and then to remove the signs within 10 days of the election.

Ideological Signs. This proposal also creates a new category of sign to accommodate a business’s or individual’s desire to communicate a non business related message on a sign which we are calling ideological signs. As a separate category of signs, the proposal has no limit to the quantity of ideological signs on a property and no limit to the time frame of signs on a property. This proposal does limit the size of ideological signs to 8 square feet per sign in residential zones and compliance with all applicable sign requirements in non residential zones. These signs are limited to private property.

The existing requirements do not call out ideological signs specifically and the placements of ideological signs are regulated by general sign requirements.

At the Planning Commission Meeting on October 21, 2013, Planning Commission recommended approval by a vote of 4-1. The dissenting vote expressed concern about the residential regulations and if the unlimited quantity allowance for ideological signs may have adverse impacts to neighborhoods.

Add the following sign types to Table 6-14: Sign Types

Election Sign

- **a sign relating to a candidate, issue, proposition, ordinance or other matter to be voted upon by the electors of the city.**

Ideological Sign

- **a sign conveying a philosophical, religious, political, charitable or other similar noncommercial message.**

Add the following to Table 6-15: Residential District Sign Allowances

Election Signs

- **No single sign shall be more than 6 square feet**
- **No quantity restriction per lot**
- **No time limitations**

Ideological Signs

- **No single sign shall be more than 8 square feet**
- **No quantity restriction per lot**
- **No time limitations**

Add the following to Table 6-16: Non-Residential District Sign Allowances

Election Signs

- **No single sign shall be more than 32 square feet**
- **No quantity restriction per lot**
- **No time limitations**

Ideological Signs

- **Must comply with all other requirements for signs in nonresidential districts**
- **No quantity restrictions**
- **No time limitations**

Add the following clarification to 6.5.7i Prohibited Signs; Off-premise signs

Off-premise signs located on private property, unless **election or ideological** or approved as part of a temporary use permit

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC), AS APPROVED BY ORDINANCE NO. 3943 ON JANUARY 23, 2012, TO ADOPT AMENDMENTS IDENTIFIED AS ELECTION AND IDEOLOGICAL SIGN AMENDMENTS FROM THE 2013 ANNUAL REVIEW.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on December 5, 2011, the Cheyenne Planning Commission unanimously recommended approval of the “Cheyenne Unified Development Code”.

Section 2. That on January 23, 2012, the Governing Body of the City of Cheyenne unanimously approved the Unified Development Code (Ordinance No. 3943) with an effective date of April 30, 2012.

Section 3. That on February 19, 2013, the City of Cheyenne Planning Commission held a public hearing to satisfy the Unified Development Code Annual Review Requirement (ref. UDC 1.1.7).

Section 4. That on October 21, 2013, the Cheyenne Planning Commission recommended approval of the amendments, referred to as Election Sign Fixes.

Section 5. That UDC “Table 6-14: Sign Types” is amended to add a new category called **Election Sign** to be described as **A sign relating to a candidate, issue, proposition, ordinance or other matter to be voted upon by the electors of the city.**

Section 6. That UDC “Table 6-14: Sign Types” is amended to add a new category called **Ideological Sign** to be described as **A sign conveying a philosophical, religious, political, charitable or other similar noncommercial message.**

Section 7. That UDC “Table 6-15: Residential District Sign Allowances” is amended to add a new category called **Election Sign** that includes three bullets:

- **No single sign shall be more than 6 square feet**
- **No quantity restriction per lot**
- **No time limitations**

Section 8. That UDC “Table 6-15: Residential District Sign Allowances” is amended to add a new category called **Ideological Sign** that includes three bullets:

- **No single sign shall be more than 8 square feet**
- **No quantity restriction per lot**
- **No time limitations**

Section 9. That UDC “Table 6-16: Non-Residential District Sign Allowances” is amended to add a new category called **Election Sign** that includes three bullets:

- **No single sign shall be more than 32 square feet**
- **No quantity restriction per lot**
- **No time limitations**

Section 10. That UDC “Table 6-16: Non-Residential District Sign Allowances” is amended to add a new category called **Ideological Sign** that includes three bullets:

- **Must comply with all other requirements for signs in nonresidential districts**
- **No quantity restrictions**
- **No time limitations**

Section 11. That UDC Section 6.5.7i is amended as follows: “Off-premise signs located on private property, unless **election or ideological** or approved as part of a temporary use permit.”

Section 12. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____